

Opinion of the Court

ferred an “exhaustive” accounting of such scenarios, however, because no court could forecast every factor that might “counse[l] hesitation.” *Id.*, at 143. Even in a particular case, a court likely cannot predict the “systemwide” consequences of recognizing a cause of action under *Bivens*. *Ziglar*, 582 U. S., at 136. That uncertainty alone is a special factor that forecloses relief. See *Hernández v. Mesa*, 885 F. 3d 811, 818 (CA5 2018) (en banc) (“The newness of this ‘new context’ should alone require dismissal”).

Finally, our cases hold that a court may not fashion a *Bivens* remedy if Congress already has provided, or has authorized the Executive to provide, “an alternative remedial structure.” *Ziglar*, 582 U. S., at 137; see also *Schweicker*, 487 U. S., at 425. If there are alternative remedial structures in place, “that alone,” like any special factor, is reason enough to “limit the power of the Judiciary to infer a new *Bivens* cause of action.” *Ziglar*, 582 U. S., at 137.² Importantly, the relevant question is not whether a *Bivens* action would “disrup[t]” a remedial scheme, *Schweicker*, 487 U. S., at 426, or whether the court “should provide for a wrong that would otherwise go unredressed,” *Bush*, 462 U. S., at 388. Nor does it matter that “existing remedies do not provide complete relief.” *Ibid.* Rather, the court must ask only whether it, rather than the political branches, is better equipped to decide whether existing remedies “should be augmented by the creation of a new judicial remedy.” *Ibid.*; see also *id.*, at 380 (“the question [is] who should decide”).

III

Applying the foregoing principles, the Court of Appeals plainly erred when it created causes of action for Boule’s

² Congress also may preclude a claim under *Bivens* v. *Six Unknown Fed. Narcotics Agents*, 403 U. S. 388 (1971), against federal officers if it affirmatively forecloses one. “Even in circumstances in which a *Bivens* remedy is generally available, an action under *Bivens* will be defeated if the defendant is immune from suit,” *Hui v. Castaneda*, 559 U. S. 799, 807 (2010), and Congress may grant such immunity as it sees fit.